

HOUSE BILL 2166

By Barrett

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 32, relative to blood donations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 32, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Autologous blood donation" means a blood donation of a person's own blood for future use by that person;

(2) "Blood bank" means a facility for the collection, processing, storage, or distribution of human blood, human blood components or derivatives, or the performance of transfusion or reinfusion procedures;

(3) "Blood donation":

(A) Means the donation of whole blood or blood products; and

(B) Includes platelets, red blood cells, white blood cells, and serum;

(4) "Directed blood donation" means a blood donation for which the product of the donation is designated for use by a specific patient in advance of a planned medical procedure; and

(5) "Physician" means a doctor of medicine licensed pursuant to title 63, chapter 6, or a doctor of osteopathy licensed pursuant to title 63, chapter 9.

(b) A blood bank shall comply with a physician's order for an autologous blood donation or directed blood donation for a specific patient. All such donations remain subject to federal and state donor eligibility, testing, labeling, screening, storage, and

compatibility requirements. A blood bank may charge a reasonable and necessary fee to cover the administrative cost of facilitating an autologous blood donation or directed blood donation. This section does not authorize a waiver of any safety, testing, or screening requirements under federal or state law.

(c) A hospital shall allow a patient scheduled for a medical procedure to provide an autologous blood donation or directed blood donation when ordered by a physician. A hospital may refuse such a donation only when medically contraindicated or incompatible with safety standards. A hospital may charge a reasonable and necessary fee to cover the administrative cost of facilitating such a donation. This section does not authorize a waiver of federal or state blood-safety, testing, or compatibility requirements.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.